

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 06/03/2026

Case #	Case Name	Tentative
01490361	Holland – Trust	TENTATIVE RULING Case: Holland – Trust 01490361 Calendar No.: 1 Date: 06/03/26 MOTION TO DISMISS (ROA 24) Respondent Dale Schmaltz, trustee of the Mary Jo Holland Trust, ("Respondent") moves for an order dismissing "the petition" filed by Petitioner Jacqueline Radell ("Petitioner"). Petitioner filed an initial "Petition to Compel Accounting, Remove Trustee, and Set Aside Fraudulent Transfer of Property from Trust" on 6/17/25. (ROA 2.) Petitioner filed an Amended Petition on 7/7/25, seeking essentially the same relief. (ROA 18.) Since an amended petition supersedes an initial petition, the court presumes that Respondent is moving to dismiss the Amended Petition, though the moving papers only vaguely refer to "the petition." Respondent's motion to dismiss is what has been referred to as a "nonstatutory speaking motion," i.e., a motion to dismiss an action based on extrinsic evidence. Such motions have been superseded by statute. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5 ["The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only